

1 ENGROSSED SENATE
2 BILL NO. 2044

By: Frix and Logan of the
Senate

3 and

4 Turner of the House

5
6 An Act relating to the practice of chiropractic;
7 amending 59 O.S. 2021, Section 161.12, which relates
8 to grounds for imposing penalties; creating certain
exception; providing certain construction; updating
statutory language; and providing an effective date.

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11 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

12 SECTION 1. AMENDATORY 59 O.S. 2021, Section 161.12, is
13 amended to read as follows:

14 Section 161.12. A. The Board of Chiropractic Examiners is
15 authorized, after notice and an opportunity for a hearing pursuant
16 to Article II of the Administrative Procedures Act, to issue an
17 order imposing one or more of the following penalties whenever the
18 Board finds, by clear and convincing evidence, that a chiropractic
19 physician has committed any of the acts or occurrences set forth in
20 subsection B of this section:

- 21 1. Disapproval of an application for a renewal license;
22 2. Revocation or suspension of an original license or renewal
23 license, or both;
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1 3. Restriction of the practice of a chiropractic physician
2 under such terms and conditions as deemed appropriate by the Board;

3 4. An administrative fine not to exceed One Thousand Dollars
4 (\$1,000.00) for each count or separate violation;

5 5. A censure or reprimand;

6 6. Placement of a chiropractic physician on probation for a
7 period of time and under such terms and conditions as the Board may
8 specify, including requiring the chiropractic physician to submit to
9 treatment, to attend continuing education courses, to submit to
10 reexamination, or to work under the supervision of another
11 chiropractic physician; and

12 7. The assessment of costs expended by the Board in
13 investigating and prosecuting a violation. The costs may include,
14 but are not limited to, staff time, salary and travel expenses,
15 witness fees and attorney fees, and shall be considered part of the
16 order of the Board.

17 B. The following acts or occurrences by a chiropractic
18 physician shall constitute grounds for which the penalties specified
19 in subsection A of this section may be imposed by order of the
20 Board:

21 1. Pleading guilty or nolo contendere to, or being convicted
22 of, a felony, a misdemeanor involving moral turpitude, or a
23 violation of federal or state controlled dangerous substances laws.
24 A copy of the judgment and sentence of the conviction, duly

1 certified by the clerk of the court in which the conviction was
2 obtained, and a certificate of the clerk that the conviction has
3 become final, shall be sufficient evidence for the imposition of a
4 penalty;

5 2. Being habitually drunk or habitually using habit-forming
6 drugs;

7 3. Using advertising in which statements are made that are
8 fraudulent, deceitful or misleading to the public;

9 4. Aiding or abetting any person not licensed to practice
10 chiropractic in this state to practice chiropractic, except students
11 who are regularly enrolled in an accredited chiropractic college;

12 5. Performing or attempting to perform major or minor surgery
13 in this state, or using electricity in any form for surgical
14 purposes, including cauterization;

15 6. Using or having in a chiropractic physician's possession any
16 instrument for treatment purposes, the use or possession of which
17 has been prohibited or declared unlawful by any agency of the United
18 States or ~~the State of Oklahoma~~ this state;

19 7. Unlawfully possessing, prescribing or administering any
20 drug, medicine, serum or vaccine. For the purposes of this
21 paragraph, "serum" does not include solutions consisting of
22 vitamins, minerals, nutrients, or any combination thereof. This
23 section shall not prevent a chiropractic physician from possessing,
24 prescribing or administering, by a needle or otherwise, vitamins,

1 minerals or nutritional supplements, or from practicing within the
2 scope of the science and art of chiropractic as defined in Section
3 161.2 of this title; provided, however, nothing in this section
4 shall be construed to authorize the administration of any drug,
5 medicine, serum or vaccine;

6 8. Advertising or displaying, directly or indirectly, any
7 certificate, diploma or other document which conveys or implies
8 information that the person is skilled in any healing art other than
9 chiropractic unless the chiropractic physician also possesses a
10 valid current license in ~~said~~ such healing art;

11 9. Obtaining an original license or renewal license in a
12 fraudulent manner;

13 10. Violating any provision of the Unfair Claims Settlement
14 Practices Act or any rule promulgated pursuant thereto;

15 11. Willfully aiding or assisting an insurer, as defined in
16 Section 1250.2 of Title 36 of the Oklahoma Statutes, or an
17 administrator, as defined in Section 1442 of Title 36 of the
18 Oklahoma Statutes, to deny claims which under the terms of the
19 insurance contract are covered services and are medically necessary;

20 12. Violating any provision of the Oklahoma Chiropractic
21 Practice Act; or

22 13. Violating any of the rules of the Board.

23 C. Any chiropractic physician against whom a penalty is imposed
24 by an order of the Board under the provisions of this section shall

1 have the right to seek a judicial review of the order pursuant to
2 Article II of the Administrative Procedures Act.

3 D. The Board is authorized to issue a confidential letter of
4 concern to a chiropractic physician when, though evidence does not
5 warrant initiation of an individual proceeding, the Board has noted
6 indications of possible errant conduct by the chiropractic physician
7 that could lead to serious consequences and formal action by the
8 Board.

9 E. If no order imposing a penalty against a chiropractic
10 physician is issued by the Board within three (3) years after a
11 complaint against the chiropractic physician is received by the
12 Board, the complaint and all related documents shall be expunged
13 from the records of the Board.

14 SECTION 2. This act shall become effective November 1, 2026.

15 Passed the Senate the 17th day of March, 2026.

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Presiding Officer of the Senate

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19 Passed the House of Representatives the ____ day of _____,
20 2026.

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Presiding Officer of the House
of Representatives

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